

THE STATE OF TEXAS
VS.

JESSICA LYNNE KELLEY
2418 DANSWOOD COURT
SPRING, TX 77373

SPN: 02383605
DOB: WF 09/24/84
DATE PREPARED: 09/25/09

D.A. LOG NUMBER: 1561486
CJIS TRACKING NO.:
BY: GAW DA NO: 065427500
AGENCY: SPRING ISD PD
O/R NO: 0818510
ARREST DATE: TO BE

NCIC CODE: 1199 01

RELATED CASES: 2 OTHER FELONIES

FELONY CHARGE: IMPROPER RELATIONSHIP W/STUDENT

CAUSE NO:

HARRIS COUNTY DISTRICT COURT NO: 351ST 1234304

FIRST SETTING DATE:

BAIL: \$30,000
PRIOR CAUSE NO:

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **JESSICA LYNNE KELLEY**, hereafter styled the Defendant, heretofore on or about **JULY 1, 2008**, did then and there unlawfully, while an employee of a PUBLIC SECONDARY school, intentionally and knowingly engage in SEXUAL INTERCOURSE with **TIMOTHY DEWAYNE DYE**, hereinafter called the complainant, a student who was enrolled at the school at which the Defendant worked and who was not the Defendant's spouse, by **BY CAUSING THE PENETRATION OF THE DEFENDANT'S FEMALE SEXUAL ORGAN WITH THE COMPLAINANT'S MALE SEXUAL ORGAN.**

Probable Cause

Your affiant, Deidra Breau, is a certified peace officer employed by the Harris County District Attorney's Office as an investigator. Your affiant believes and has reason to believe Jessica Lynne Kelley committed the offense of Improper Relationship with a Student on or about July 1, 2008 in Harris County, Texas.

Affiant reviewed an offense report prepared by Officer Randall Richards, a peace officer employed by the Spring Independent School District. Officer Richards spoke with Timothy Dye, hereafter referred to as the complainant. At the time of the offense, Timothy Dye, was 16 years of age and a student at Spring High School. The complainant knows the difference between a truth and a lie and stated that he had a sexual relationship with the defendant which started in the summer of 2008. The complainant knows the defendant by sight as his 9th grade Geography teacher at Spring High School. The defendant was his teacher during the 2007-2008 school year.

The complainant told Officer Richards that on or about July 1, 2008, he went to the defendant's residence at 2418 Daneswood Court, Spring, Harris County, Texas. The complainant stated he was at the defendant's residence with his friend, Cindy Nativi. The complainant indicated that after Nativi left the residence later that day, that he and the defendant kissed. Then they went to the defendant's bedroom and the defendant told him that "there was something in the dresser". The complainant opened the dresser and found a condom. The complainant put on the condom and indicated he then put his penis in the vagina (female sexual organ) of the defendant and had sexual intercourse. Afterwards the complainant said he wiped himself off with a baby wipe and the defendant went to clean herself up. The complainant indicated he spent the night at the defendant's residence.

The complainant told Officer Richards that he went back to the defendant's residence again on or about July 23, 2008. The defendant told him to "suit up." The complainant went to the bedroom dresser, got a condom, and put it on. The complainant then stood up like "superman" so the defendant could see him. They then engaged in sexual intercourse with the complainant placing his penis in the female sexual organ of the defendant. The complainant again spent the night with the defendant.

The complainant told his friend, Cindy Nativi, about having a sexual relationship with the defendant. Officer Richards spoke with Karen Kleinen, a credible and reliable person, who told him that her daughter, Cindy Nativi, a 15 year old student at Spring High School, told her about the complainant telling her of his sexual relations with the defendant. Ms. Kleinen then reported this to Renee Coleman, Asst. Superintendant of Human Resources.

Officer Richards indicated he spoke with the defendant on September 24, 2008 and defendant admitted she had sexual intercourse with the complainant on three separate occasions in July 2008 at her residence, 2418 Daneswood Court, Spring, Harris County, Texas.

FILED

Loren Jackson
District Clerk

SEP 25 2009

Time: Harris County, Texas

By Deputy

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Sworn to and subscribed before me on Sept 25, 2009


AFFIANT


ASSISTANT DISTRICT ATTORNEY
OF HARRIS COUNTY, TEXAS.

COMPLAINT

RECORDER'S MEMORANDUM
This instrument is of poor quality
at the time of imaging